STANDARD OPERATING PROCEDURE			CS-4200	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 04/01/07	DATE REVISED **01/24/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE COURT SERVICES	RESOURCES N.R.S. 69-2401 THROUGH 69-2409 Title 18 United States Code Section 922 (g) (1) through (9) and (n)			
SUBJECT HANDGUN PURCHASE CERTIFICATE	CROSS-REFERENCE			

I. Purpose:

The purpose of this policy is to establish the procedures for processing Handgun Purchase Certificate applications.

II. Policy:

As required by Nebraska State Statute, the Sarpy County Sheriff's Office shall process applications for Handgun Purchase Certificates. The Sheriff's Office shall ensure that the individuals issued Purchase Certificates are eligible to purchase and possess a handgun according to federal guidelines. Applications shall be processed within three (3) working days unless the application is denied or placed in pending status.

III. Procedures:

A. Handgun Purchase Certificate Applications-Sheriff's Office Account Clerk-Backgrounds Responsibilities: Any resident of Sarpy County may apply for a Handgun Purchase Certificate in person at the Sarpy County Sheriff's Office. Applications shall be taken in person, from the north vestibule drop box or by mail. When receiving an application, the Sheriff's Office receptionist shall complete the following:

1. The Sheriff's Office Account Clerk- Backgrounds shall direct the individual to complete an application including a minimum of three (3) years of residence history and the receptionist shall obtain the individual's driver's license or identification.

a) If the individual is active military and stationed in Sarpy County and he or she does not have a Nebraska driver's license or identification, he or she is required to provide a copy of his or her PCS orders; his or her driver's license or state identification; and his or her military

identification. The Account Clerk- Backgrounds shall make a copy of all required documents to be included with the application.

2. The Account Clerk- Backgrounds shall make a copy of the individual's driver's license to be included with the application.

3. Upon receiving the completed application, the Account Clerk- Backgrounds shall ensure the following:

a) The individual must be a resident of Sarpy County and the address on his or her identification must match the address on the application. This shall be a physical address. PO Boxes shall NOT be accepted.

b) The individual must be twenty-one (21) years of age or older on the date the application is received.

c) The application is complete and signed.

4. The Account Clerk- Backgrounds shall obtain the application fee and provide the individual a receipt.

5. The Account Clerk- Backgrounds shall enter the individual's name and the date the application was received into the Handgun Purchase Certificate database.

6. The Account Clerk- Backgrounds shall forward the application and the identification copy(s) to the Backgrounds Unit.

B. **Application Processing-Account Clerk-Backgrounds Responsibilities:** The Account Clerk-Backgrounds shall be responsible for completing the background check for each application. Upon receiving the application, the Account Clerk-Backgrounds shall complete the following:

1. The Account Clerk-Backgrounds shall ensure all of the following sources are checked during the background check:

a) NCIC/NCIS
b) Sarpy County local database (LRMS)
c) Douglas County local database
d) Protection Order files
e) NCJIS

2. The Account Clerk-Backgrounds shall include copies of any disqualifying records located from the above sources with the application.

3. The Account Clerk-Backgrounds shall forward the application with all documentation to the Desk Sergeant. If the Desk Sergeant is unavailable, the application shall be forwarded to the Assistant Court Services Commander.

C. Application Approval/Denial-Assistant Court Services Commander Responsibilities: The Assistant Court Services Commander or his or her designee shall be responsible for determining if the individual making application is allowed under federal guidelines to purchase and possess a handgun. The Desk Sergeant shall complete the following:

1. The Desk Sergeant shall review the application using the denial criteria (see section E below). The Desk Sergeant shall conduct any necessary investigation to ensure the application does not contain any denial criteria.

a) If the Desk Sergeant is unable to obtain information regarding a possible denial criterion, he or she may complete a Denial Letter requesting the applicant provide official records regarding an incident that may be a possible disqualifier. In this case, the application is placed in pending status until the information is received.

2. If the application contains one or more of the denial criteria, the Desk Sergeant shall complete a Denial Letter listing the reason for the denial. The Desk Sergeant shall sign two copies of the Denial Letter and return the application with the Denial Letters to the Account Clerk-Backgrounds.

3. If the application does not contain any denial criteria, the Desk Sergeant shall sign the application and return it to the Account Clerk-Backgrounds.

D. Issuing Certificate/Denial Letter-Account Clerk-Backgrounds Responsibilities: Upon receiving the application from the Desk Sergeant, the Account Clerk-Backgrounds shall complete the following:

1. If the individual has been approved by the Desk Sergeant, the Account Clerk-Backgrounds shall complete a Handgun Purchase Certificate.

a) The certificate shall be mailed to the applicant.

b) If requested, the certificate shall be placed at the receptionist's desk for pick up and the applicant shall be notified by telephone that the certificate is available.

c) The application and documentation shall be scanned into the records management system.

2. The Account Clerk-Backgrounds shall update the Handgun Purchase Certificate database including if the application was approved or denied and the date the certificate/denial was mailed or picked up.

E. **Denial Criteria:** The following criteria shall be used to deny Handgun Purchase Certificate Applications (for further information see Title 18 United States Code Section 922 (g) (1) through (9) and (n)):

1. Application is incomplete (e.g., not signed, does not have three (3) years of residency information, does not have a date of birth).

2. Applicant is not twenty-one (21) years of age or older on the date of the application.

3. Applicant answers “Yes” to any of the disqualifier questions.

4. Applicant has been convicted in any court of a crime that could have been punishable by imprisonment for a term exceeding one year.

5. Applicant is a fugitive from justice (i.e. applicant has an outstanding misdemeanor or felony warrant).

6. Applicant is an unlawful user of or addicted to any controlled substance.

a) Applicant has been convicted for use or possession of any controlled substance within the past year.

b) Applicant has multiple arrests for use or possession of any controlled substance within the past five (5) years with the most recent arrest occurring within the past year.

c) Applicant has failed a drug test (e.g., urine screen) within the past year.

d) Applicant admits to using any controlled substance within the past year.

7. Applicant has been adjudicated as a mental defective or has been committed to any mental institution (e.g., determined by the Mental Health Board to be a danger to himself or others).

8. Applicant is an alien who is illegally or unlawfully in the United States.

a) An alien legally in the United States must provide proof of ninety (90) days of consecutive residency, a government issued photo identification, and an ICE identification number.

b) A non-immigrant visitor must provide a valid hunting license.

9. Applicant has been discharged from the armed forces under dishonorable conditions.

10. Applicant, having been a citizen of the United States, has renounced his or her U.S. citizenship.

11. Applicant is subject to a current court order that restrains him or her from harassing, stalking, or threatening an intimate partner or child of such intimate partner, or from engaging in other conduct that would place the partner or child in reasonable fear of bodily injury.

12. Applicant has been convicted in any court of a misdemeanor crime of domestic violence. This does not generally include disturbing the peace.

13. Applicant is under indictment or information (e.g., pending trial) for a crime which could be punishable by imprisonment for a term exceeding one year.